

SENATE No. 997

The Commonwealth of Massachusetts

PRESENTED BY:

Adam Gómez

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act creating an office of tenant protections.

PETITION OF:

NAME:

Adam Gómez

DISTRICT/ADDRESS:

Hampden

SENATE No. 997

By Mr. Gomez, a petition (accompanied by bill, Senate, No. 997) of Adam Gomez for legislation to create an office of tenant protections within the executive office of housing and livable communities. Housing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act creating an office of tenant protections.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 23B of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by inserting the following section:-

3 Section 31. There shall be within the executive office of housing and livable communities
4 an office of tenant protections. The secretary of housing and livable communities shall appoint a
5 director of the office who shall serve at the pleasure of the secretary.

6 The office shall: (1) enforce, concurrent with the commissioner of public health and local
7 boards of health, the minimum standards of fitness for human habitation as defined by 105 CMR
8 410.000 (State Sanitary Code, Chapter II); (2) have the powers necessary to enforce the
9 standards set forth in subsection (1) including: (i) the power to inspect residences as defined by
10 105 CMR 410.010, (ii) the power to issue and serve orders of noncompliance with the minimum
11 standards of fitness for human habitation, (iii) the power to hold hearings on the orders

12 mentioned in clause (ii), (iv) the power to issue fines for violations 105 CMR 410.000 in
13 accordance with 105 CMR 400.700 (3) enforce compliance with 940 CMR 3.17

14 Final decisions on noncompliance shall be subject to judicial appeal in the same manner
15 as those made by boards of health under 105 CMR 400.600.

16 The executive office of housing and livable communities shall promulgate regulations or
17 guidance to carry out this section.